

**MEMORANDUM OF UNDERSTANDING BY AND BETWEEN LARAMIE COUNTY,
THE CITY OF CHEYENNE, THE CHEYENNE BOARD OF PUBLIC UTILITIES, THE
CHEYENNE/LARAMIE COUNTY BOARD OF HEALTH, and THE CHEYENNE
REGIONAL AIRPORT BOARD
REGARDING THE MANAGEMENT OF THE ESRI
ENTERPRISE AGREEMENT**

THIS Memorandum of Understanding (hereinafter “MOU”) is made and entered into by and between Laramie County, 310 West 19th Street, P.O. Box 608, Cheyenne Wyoming, 82003-0608 (hereinafter referred to as “**COUNTY**”), the City of Cheyenne, 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (hereinafter referred to as “**CITY**”), the City of Cheyenne Board of Public Utilities, 2416 Snyder Avenue, Cheyenne, Wyoming 82001 (hereinafter referred to as “**BOPU**”), the Cheyenne/Laramie County Board of Health, 100 Central Avenue, Cheyenne, Wyoming 82001 (hereinafter referred to as “**HEALTH**”) and the Cheyenne Regional Airport Board, 4020 Airport Parkway West, Cheyenne, Wyoming 82003 (hereinafter referred to as “**AIRPORT**”). The parties agree as follows:

I. PURPOSE

The purpose of this MOU is to define the management and coordination strategy in administering the Small Government Enterprise Agreement and the Addendum (hereinafter referred to as “**SGEA**”) by and between the COUNTY and Environmental Systems Research Institute, Inc., 380 New York Street, Redlands, California 92373-8100 (hereinafter referred to as “**ESRI**”). This is a renewal of an existing SGEA that benefits the members of the Cheyenne and Laramie County GIS Cooperative (hereinafter referred to as “**CLCGISC**”) in coordinating and collaborating on ESRI software licensing and maintenance.

II. SGEA MANAGEMENT

- A. The COUNTY will serve as the Lead agency for the EA. This includes acting as the contractual agency with ESRI in approval of the SGEA Terms and Conditions; managing a budget line item for pooling of funds from all agencies participating in the EA; and payment of the annual ESRI SGEA invoice.
- B. The Cheyenne/Laramie County GIS Cooperative Coordinator will be the point of contact with ESRI in managing the SGEA to include the following items:
 - 1. Act as single point of contact for orders and deliveries of software and redistribution to eligible users. Total backup media will not exceed two (2). Additional back up media is available for purchase by the requesting agency.
 - 2. Provide ESRI with annual report of GIS software installations of software products referenced in the EA.

3. Account for the below amounts in the CLCGISC Operational Budget annually and invoice each agency as part of the normal invoicing process for the CLCGISC.
- C. The parties to this MOU agree to fund the SGEA for their proportional share as follows with the SGEA start date of January 20, 2024, and for each year of the 3-year SGEA term:

Year One (1/20/24 – 1/19/25)

COUNTY	\$ 25,200
CITY	31,050 (Includes MPO Share: \$5,850)
BOPU	25,200
HEALTH	7,830
AIRPORT	<u>720</u>
Total Due	\$90,000

Year Two (1/20/25 – 1/19/26)

COUNTY	\$ 28,000
CITY	34,500 (Includes MPO Share: \$6,500)
BOPU	28,000
HEALTH	8,700
AIRPORT	<u>800</u>
Total Due	\$ 100,000

Year Three (1/20/26 – 1/19/27)

COUNTY	\$ 30,800
CITY	37,950 (Includes MPO Share: \$7,150)
BOPU	30,800
HEALTH	9,570
AIRPORT	<u>880</u>
Total Due	\$ 110,000

- D. Additional members of the CLCGISC are allowed to participate in the SGEA and their share of the annual maintenance costs will be determined by the appropriate agency named in this MOU. If the SGEA is not renewed after this 3-year term, then ESRI software licensing and maintenance costs will be determined by ESRI and paid by the individual member agencies or appropriate governmental entity.
- E. The parties to this MOU will provide an annual report of installed ESRI software within their jurisdiction to the CLCGISC Coordinator 30 days prior to the SGEA anniversary date. Deployments of software covered by this SGEA within agencies not named or under the direct guidance of a named party to this MOU must be covered under a separate agreement between this new agency and ESRI.

- F. The Tier 1 support center and Tier 2 technical support will consist of the following individuals who are authorized to contact ESRI directly for technical support:

BOPU GIS Supervisor
CITY GIS Coordinator
COUNTY GIS Coordinator
MPO GIS Coordinator

Additional ESRI users requiring technical support will first contact one of these individuals prior to contacting the CLCGISC Coordinator.

- G. Four (4) ESRI User Conference complimentary passes will be shared between the named entities in this MOU. Two passes will be designated for use by BOPU each year and if they choose to not use one or both passes then these passes will be made available for use by the remaining entities. Use of these passes will be determined each year by mutual understanding between the parties.

III. GENERAL PROVISIONS

A. Entire Agreement: This MOU, consisting of six (6) pages, represents the entire and integrated agreement and understanding between the parties and supersedes all prior negotiations, statements, representations and agreements, whether written or oral.

B. Assignment: Neither this MOU, nor any rights or obligations hereunder shall be assigned or delegated by a party without the prior written consent of the other party.

C. Modification: This MOU shall be modified only by a written agreement, duly executed by all parties hereto.

D. Invalidity: If any provision of this MOU is held invalid or unenforceable by any court of competent jurisdiction, or if the named entities are advised of any such actual or potential invalidity or unenforceability, such holding or advice shall not invalidate or render unenforceable any other provision hereof. It is the express intent of the parties that the provisions of this MOU are fully severable.

E. Applicable Law and Venue: The parties mutually understand and agree this MOU shall be governed by and interpreted pursuant to the laws of the State of Wyoming. If any dispute arises between the parties from or concerning this MOU or the subject matter hereof, any suit or proceeding at law or in equity shall be brought in the District Court of the State of Wyoming, First Judicial District, sitting at Cheyenne, Wyoming. This provision is not intended nor shall it be construed to waive the parties' governmental immunity as provided in this MOU.

F. Contingencies: The parties mutually certify and warrant that no gratuities, kick-backs or contingency fees were paid in connection with this MOU, nor were any fees, commissions, gifts or other considerations made contingent upon the award of this MOU.

G. Discrimination: The parties agree they will not discriminate against any person who performs work under the terms and conditions of this MOU because of race, color, gender, creed, handicapping condition, or national origin.

H. ADA Compliance: The parties agree they will not discriminate against a qualified individual with disability, pursuant to a law as set forth in the Americans With Disabilities Act, P.L. 101-336, 42 U.S.C. § 12101, *et seq.*, and/or any properly promulgated rules and regulations relating thereto.

I. Governmental/Sovereign Immunity: The parties do not waive their Governmental/Sovereign Immunity, as provided by any applicable law including W.S. § 1-39-101 *et seq.*, by entering into this MOU. Further, the parties fully retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this MOU.

J. Indemnification: Each party to this MOU shall be responsible for any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the other.

K. Third Parties: The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties and obligations contained in this MOU shall operate only between the parties to the MOU, and shall inure solely to the benefit of the parties to this MOU.

L. Conflict of Interest: COUNTY, CITY, BOPU, HEALTH and AIRPORT affirm that to their knowledge no employee has any personal beneficial interest whatsoever in the MOU described herein. No staff members of the parties, compensated either partially or wholly with funds from this MOU, shall engage in any conduct or activity which would constitute a conflict of interest relative to this MOU.

M. Force Majeure: No party shall be liable to perform under this MOU if such failure arises out of causes beyond control, and without the fault or the negligence of said party. Such causes may include, but are not restricted to, Act of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. In every case, however, a failure to perform must be beyond the control and without the fault or the negligence of said party.

N. Notices: All notices required and permitted under this MOU shall be deemed to have been given, if and when deposited in the U.S. Mail, properly stamped and addressed to the party for whom intended at such parties' address listed herein, or when personally delivered to such party. A party may change its address for notice hereunder by giving written notice to the other party.

O. Compliance with Laws: All parties warrant that they will comply with all applicable laws, regulations and ordinances, whether Federal, State or local in carrying out the purposes of this MOU.

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Signature Page 1

This Agreement is effective the date of the last signature affixed to this page.

LARAMIE COUNTY, WYOMING

By: _____ Date _____
Troy Thompson, Chairman,
Laramie County Commissioners

ATTEST:

By: _____ Date _____
Debra Lee, Laramie County Clerk

CITY OF CHEYENNE

By: _____ Date _____
Patrick Collins, Mayor

ATTEST:

By: _____ Date _____
Kristina F. Jones, City Clerk

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Signature Page 2

CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES

By: _____ Date _____
Brad Brooks, Director

CHEYENNE/LARAMIE COUNTY BOARD OF HEALTH

By: _____ Date _____
Gus Lopez, President

CHEYENNE REGIONAL AIRPORT BOARD

By: _____ Date _____
Timothy Bradshaw, A.A.E., Director of Aviation

REVIEWED AND APPROVED AS TO FORM ONLY:

By: _____ Date _____
_____, Laramie County Attorney

By: _____ Date _____
_____, City Attorney